



File No.: EXP202209840

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on September 2, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“that they rented an apartment through the website ***WEB.1 and that, upon accessing it, they noticed that it has an access system that takes photographs when approaching the door, indicating that there was an operational surveillance camera installed inside the dwelling, without having been informed at any time when contracting the stay in said apartment”—file No. 1—. They provide a complaint submitted to ***WEB.1, which includes photographs of the camera.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent on September 21, 2022, October 13, 2022, and October 30, 2022, for them to analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), without access having been made to the content of the act notified at the address provided by the complainant. On October 13, 2022, a forwarding and request for information was made to the respondent at the address registered in the municipal roll, (***ADDRESS.1), resulting in “absent delivery” on October 19 and 20, 2022, and being returned on October 28, 2022.

Reiterated on October 3, 2022, it was returned as “unknown” on November 8, 2022.

THIRD: On November 11, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On May 30, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, C/ Jorge Juan, 6, www.aepd.es, 28001 – Madrid, sedeagpd.gob.es, for the alleged infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, taking into account that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

SIXTH: Upon consulting the database of this Agency, the Initiation Agreement is published in the BOE on June 26, 2023, associated with the procedure number PS/00614/2022.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts to be proven in the present procedure,

PROVEN FACTS

First: The facts arise from the complaint dated 09/02/22, through which the following is conveyed: “that they rented an apartment through the website ***WEB.1 and that, upon accessing it, they noticed that it has an access system that takes photographs when approaching the door, indicating that there was an operational surveillance camera installed inside the dwelling, without having been informed at any time when contracting the stay in said apartment”—file No. 1—. They provide a complaint submitted to ***WEB.1, which includes photographs of the camera.

Second: It is accredited that B.B.B., with NIF ***NIF.1, is the main responsible party for the facts as the owner of the property subject to rental.

Third: It is accredited that there is an image capture device inside the vacation rental apartment, proceeding to the “processing of data” of the occupants without justified cause.

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Fourth. It is established that the “data processing” of the affected party and the members of the family unit has been accredited, without any explanation being provided regarding the storage and purpose of obtaining the data.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, transposing European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 “in fine” is applied to the present procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will become void, and consequently, the proceedings will be archived.

II

In the present case, the complaint dated September 2, 2022, submitted to this Agency, is examined, in which the following main fact is reported:

“presence of an internal camera in the rented apartment without proper notification of its presence (...) affecting the right to personal and/or family privacy.”

The facts by this agency will be specified in the presence of a camera in the entrance hall of the dwelling that affects common areas of the dwelling without justified cause.

Article 18, paragraph 4 of the Spanish Constitution states: “The law shall limit the use of information technology to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights.”

In Recital 40 of the GDPR, it is indicated that for a “processing to be lawful, personal data must be processed on one of the legal bases established by law (...).”

Therefore, the “data processing” carried out with the camera(s) installed inside the property must be justified under the so-called legal bases, that is, it must be demonstrated that the processing is lawful according to the list of situations or specific cases in which it is possible to process personal data.

The previously described facts may imply an infringement of the content of Article 6 of the GDPR (Regulation 2016/679/EU, April 27).

The first requirement for the processing of personal data to be lawful is that it has a legal basis. It must

be supported by one of the six enabling bases established in a closed manner in Article 6.1 of the GDPR, the text of which is as follows:

1.

Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child (...)"

The purpose of video surveillance cameras, in general, is the protection of property, persons, and facilities; however, certain precautions must be taken when installing them, as their presence may conflict with other fundamental rights at stake.

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It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The contract for the rental of tourist housing is a lease agreement for private housing aimed at providing the tenant with temporary use and enjoyment of the property, which will be occupied for vacation, leisure, tourism, or similar purposes.

Rental agreements for housing for tourist or vacation use may be regulated by specific regulations of each autonomous community or by national law (the Urban Lease Law): this will depend on whether the requirements stipulated in Article 5.e) of Law 29/1994, of November 24, on Urban Leases (LAU) are met.

"Tourist accommodation is understood to be housing located in properties situated on residential land, where accommodation services are offered for a fee within the Autonomous Community of Andalusia, on a habitual basis and for tourist purposes" - art. 3 of Decree 28/2016, of February 2, on housing for tourist purposes and amending Decree 194/2010, of April 20, on tourist apartment establishments.

The presence of cameras inside the dwelling constitutes an infringement on a space that ceases to be "private" for the owner, becoming subject to the enjoyment of a third party whose rights must be respected, including the right to privacy and the right to "protection of personal data."

Therefore, the "personal and domestic" scope in the capturing of images inside the private dwelling (Article 22.5 LOPDGGDD) disappears when the temporary use and enjoyment of the private dwelling is ceded to a third party under a contractual arrangement, becoming an area reserved for their strictest personal and family privacy and also protected by data protection regulations, which generally do not allow for the capture and processing of such data.

The protection of the property against potential abuses by tenants can be carried out through the contractual clauses themselves in accordance with the regulatory framework in this case of the Autonomous Community of Andalusia, informing them of the consequences in the event of damage, abusive use of the property, or notifying them of the possibility of exercising legal actions before the competent authorities in the matter.

III

In accordance with the evidence available in this sanctioning procedure, it is considered that the party being claimed has a camera inside the dwelling, which they rent temporarily through a well-known platform as a tourist apartment.

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The GDPR maintains the principle that any processing of data must be supported by a legitimate basis. The legitimizing bases are simply a list of situations or specific assumptions in which it is possible to process personal data. In other words, this figure establishes a rule as simple as that a data controller cannot carry out a processing activity whenever they want, but only when they are authorized to do so.

The presence of the camera represents a disproportionate measure to the purpose of the system, affecting not only a space reserved for the privacy of the users of the property but also constitutes an "unconsented processing" of their personal data, lacking the most minimal information regarding it, nor is it justified in the "legitimizing bases" previously mentioned.

Anyone who rents a tourist apartment enjoys full protection of the right to personal and/or family privacy, as well as the protection of their personal data against the presence of devices that may affect "reserved" spaces where the individual develops a life, even if temporarily, personal and family, excluded from both the knowledge and intrusion of third parties.

The Supreme Court adopts a broad definition of "privacy," thus recognizing the existence of the space of privacy, whose exclusion from the knowledge of other people constitutes a right of every individual. Consequently, the protection of the home is merely an aspect of the protection of privacy that serves the free development of personality. Also, in this sense, the Constitutional Court states in STC 22/1984 that the right to the inviolability of the home constitutes a true fundamental right of the person, established, as we have said, to guarantee this person's privacy within the space that the person themselves chooses and which must be characterized precisely by being exempt or immune to invasions or external aggressions, from other people or from public authority.

In support of the above, we bring to attention Administrative Litigation Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020. "As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant in protection, and recalled later in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of home entry and searches (art. 18.2 CE), despite the autonomy that the Spanish Constitution recognizes to both rights, constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved area of people's lives excluded from the knowledge of third parties, whether they are public authorities or private individuals, against their will, the right to home inviolability protects "a specific spatial area" since therein individuals exercise their most intimate freedom, free from all subjection to social uses and conventions, with this right protecting both the physical space itself and...

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what it contains in terms of the emanation of the person and their private sphere. Therefore, we have affirmed that the constitutional protection of the home is an instrumental protection, which defends the areas in which the private life of the person develops."

On the other hand, Criminal Judgment No. 147/2021, Provincial Court of Huelva, Section 1, Rec 298/2021 of June 29, 2021.

"As for the violations of fundamental rights allegedly committed by the representation of Constantino, regarding the inviolability of the home, the constitutional protection of the home in Article 18.2 of the

Constitution is specified in two distinct rules. The first refers to the protection of its inviolability as a guarantee that the spatial area of privacy chosen by the person remains 'exempt from' or 'immune to' any type of invasion or external aggression from other individuals or public authority, including those that may occur without physical penetration, but through mechanical, electronic, or other analogous devices (STC 22/1984 of February 17). The second, as a specification of the first, establishes the prohibition of two possible forms of interference in the home, namely, its entry and search, stipulating that, outside of cases of flagrant crime, only entries or searches carried out with the consent of the owner or by judicial resolution are constitutionally legitimate, so that the mention of exceptions to this prohibition, admitted by the Constitution, is of a taxative nature (SSTC 22/1984 of February 17 and 136/2000 of May 29).

The presence of such devices inside homes deviates from the purpose of protecting the property, becoming a coercive measure, of excessive control over the privacy and/or data of users, who cannot freely develop in the rented space for leisure, tourism, recreation, etc.

The known facts constitute an infringement, attributable to the claimed party, classified in Article 6 of the GDPR, previously mentioned.

Article 72, paragraph 1, letter b) establishes a limitation period of three years: "the infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679."

IV

Article 83.5 of the GDPR provides the following: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total global annual turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...)."

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Article 83.2 of the GDPR states: "Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the actions provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) The nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered.

b) The intentionality and negligence of the infringement (...)."

In justifying the sanction, it is taken into account that there was no initial cooperation with this Agency, as well as the seriousness of the described facts, since the presence of the internal device affects third-party data through its processing without justified cause, disproportionately affecting fundamental rights, with the conduct being considered serious, which justifies a sanction set at the amount of €6,000, a sanction positioned at the lower end of the scale for this type of behavior.

V

The text of the resolution establishes what the infringements committed have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

It is noted that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the

provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €6,000 (six thousand euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, to provide proof of compliance with the following measure(s) within 15 working days from the day following the notification of this act:

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- Proceed to remove any type of image-capturing device from inside the dwelling dedicated to tourist rental, providing a photograph with date and time (before/after) that certifies this fact.

FOURTH: Warn the sanctioned party that they must pay the imposed fine once this resolution becomes executive, in accordance with the provisions of art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXX-XXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period. Upon receiving the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

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